

24SMCV04259 24SMCV04259

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-10

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This is an application to shorten time for plaintiff's motion to deem RFAs to be admitted. This case was filed in September 2024. The FSC was held on February 28, 2025, and the trial date was set then. Plaintiff served RFAs on defendant on July 1, 2026, making responses due on August 4, 2026. No responses were served. In fact, according to plaintiff, the defendant to whom the RFAs were served has done nothing in the entire case other than filing an answer and a cross complaint. On August 6, 2026, plaintiff called defense counsel to inquire about this and to ask if there would be responses coming. No one at counsel's office was available, so plaintiff left a message, which was apparently ignored. Because of that, plaintiff reserved a date for a hearing on the motion to deem admitted. Sadly, due to the court's calendar and a somewhat lengthy period that the court will be dark, the next available date for that hearing is November 20, which is after the November 9, 2026, trial date. Were the court able to hold the hearing on statutory notice, a motion filed on August 6, 2026, would be timely.

The court's inclination would be to GRANT the application to shorten time and set a hearing date that it before the discovery cut off, and to have briefing per Code. The court assumes that the mere filing of the motion and the setting of the date will wind up mooted the substance, as the failure to serve verified responses without objection prior to the hearing would, assuming that plaintiff's representations are true, lead to the court's granting the motion. Because that is a harsh penalty, albeit one required by the Code of Civil Procedure, the court ventures to guess that well before the hearing, plaintiff will serve responses.

But if not, the court would expect the opposition and optional reply to be filed per Code.